

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM3
HON. Judge Erin Rowe
Date: 08/13/26

Court Room Rules and Notices

#	Case Name	Tentative
1	Fard – Trust (2020 – 01157766)	MOTION TO SET ASIDE & MOTION TO STRIKE Petitioner Farnaz Rahimi Kashani’s (Petitioner) Motion to Set Aside Order Issued on July 31, 2025 Granting Respondent Richard Huntington’s Ex Parte Application, and to Vacate All Resulting Orders (ROA 2449) is DENIED. Respondent Richard Huntington’s Motion to Strike Portions of Petitioner, Farnaz Rahimi Kashani’s Verified Petition, etc. (ROA 2657) is DENIED. I. PETITIONER’S MOTION TO SET ASIDE Pursuant to Code of Civil Procedure sections 473(d) (section 473(d)) and 1008 (section 1008), and the court’s inherent authority to vacate void or improperly obtained orders, Petitioner seeks to set aside the court’s July 31, 2025 Minute Order (July Order) issuing a temporary restraining order and setting an Order to Show Cause re: Preliminary Injunction. Petitioner also seeks to set aside every order, finding, restraint, and proceeding arising from the July Order. The motion is made on the ground Petitioner was not properly served with the ex parte application or the supporting papers leading to the July Order. By supplemental notice filed July 21, 2026 (ROA 2713), Petitioner also argues she was not properly served with the Temporary Restraining Order resulting from the July Order. A. Section 473(d) Section 473(d) reads, in full: “The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” “In determining whether an order is void for purposes of section 473, subdivision (d), courts distinguish between orders that are void on the face of the record and orders that appear valid on the face of the record but are shown to be invalid through consideration of extrinsic evidence. ‘This distinction may be important in a particular case because it impacts the procedural mechanism available to attack the judgment [or order], when the judgment [or order] may be attacked, and how the party challenging the judgment [or order] proves that the judgment [or order] is void.’ [Citation.] [¶] An order is considered void on its face only when the invalidity is apparent

from an inspection of the judgment roll or court record without consideration of extrinsic evidence. . . . If the invalidity can be shown only through consideration of extrinsic evidence, such as declarations or testimony, the order is not void on its face.” (*Pittman v. Beck Park Apartments Ltd.* (2018) 20 Cal.App.5th 1009, 1020–1021.)

Petitioner’s motion to set aside relies on her declaration and other extrinsic evidence. Accordingly, Petitioner’s challenge under section 473(d) is **DENIED**.

B. Section 1008

Section 1008 reads, in pertinent parts:

“(a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part . . . any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and **based upon new or different facts, circumstances, or law**, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

. . .

“(e) This section specifies the court’s jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court **unless made according to this section.** ”

(Emphasis added.)

The requirement of “new or different facts, circumstances or law” is jurisdictional. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500 [“a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon ‘new or different facts, circumstances, or law’”].) Further, a party seeking reconsideration pursuant to Section 1008 must explain why the allegedly new or different facts, circumstances or law were not previously presented. (*Evan Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 833.) “The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such

	that the moving party could not, with reasonable diligence, have discovered or produced it’ at the original hearing.” (<i>Craddock v. Hilton Domestic Operating Co, Inc.</i> (2025) 112 Cal.App.5th 284, 304.) Petitioner raised the argument of insufficient notice in her opposition to the ex parte that resulted in the July Order. (ROA 1601 at 8:13-27.) Accordingly, the issue of notice is not a “new or different” fact or circumstance. Further, the motion to set aside was filed more than a year after the minute order was issued—well beyond the 10-day limitation. The motion is DENIED. II. RESPONDENT’S MOTION TO STRIKE Pursuant to Code of Civil Procedure section 436, Respondent moves to strike 32 full paragraphs and portions of four additional paragraphs included in Petitioner’s March 11, 2025 Petition (March 2025 Petition). Respondent argues the identified paragraphs/sections should be stricken because they are irrelevant and improper. Code of Civil Procedure section 436 reads, in full: The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: [¶] (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. [¶] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Emphasis added.) For purpose of § 436, “pleading” is defined as a “demurrer, answer, complaint, or cross-complaint.” (Code of Civ. Proc., § 435(a)(2).) A petition is not one of the pleadings subject to a motion to strike. Even if a motion to strike could be directed at a petition, the court would deny the motion. Although the March 2025 Petition is not a model of clarity or concision and many of the challenged paragraphs include somewhat extraneous allegations, granting the motion would not benefit either the parties or the court. Respondent waited more than a year after the March 2025 Petition was filed to file the motion to strike. In the interim, four hearings were held on the Petition—July 14, 2025, January 26, 2026, February 2, 2026, and April 27, 2026. Nothing in the Petition is unfairly prejudices Respondent. The motion to strike is DENIED. Respondent is directed to give notice.